

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

CIVIL REVISION NO. 2540 OF 2007

Most. Aleya Begum and others
----- Plaintiff-Respondents-Petitioners
=Versus=
Most. Amena Bibi and others
----- Contesting defendant-Appellant-
Opposite Parties

Mr. Abdul Quayum with
Mr. Md. Mizanur Rahman
----- For the Petitioners
Mr. Mohammad Eunus
----- For the Opposite Parties

Heard on: 05.07.2017

Judgment on: 17.07.2017.

At the instance of the present Plaintiff-respondents- petitioners, Most. Aleya Begum and others, this Rule has been issued calling upon the opposite party Nos. 1-7 to show cause as to why the impugned judgment and decree dated 19.03.2007, passed by the learned Additional District Judge, Patuakhali, in Title Appeal No. 139 of 2004 reversing those of dated 01.08.2004 passed by the learned Senior Assistant Judge, Kalapara, Patuakhali, in Title Suit No. 83 of 2002, should not be set aside.

The relevant facts for disposal of the present Rule, inter-alia are that the present petitioners as the plaintiffs filed the Title Suit No. 83 of 2002 in the court of the learned Assistant Judge, Kolapara,

Patuakhali, for partition. The plaint case is that one Asimuddin was the owner of the suit land appertaining to Plot Nos. 3267 and 3301 in C.S. Khatian No. 1044 under mouza Sonatola land measuring 6.46 acres. One Ensaruddin was also an owner of 6.30 acres in Plot Nos. 3266 and 3300 in C.S. khatian No. 1043. In course of time after the death of the above owners, their successors inherited land who eventually sold to the present plaintiffs petitioners by executing several deeds beginning from 1958 to 1984. The present plaintiffs accordingly, purchased land measuring 3.21 acres and have been possessing the same by constructing houses and cultivating the agriculture land. The plaintiffs requested defendants for partition but on refusal, the plaintiffs filed the suit.

The defendant Nos. 3-5, 26-29 contested the suit by filing written statement and denying the statements made in the plaint. It is contended that Kabiruddin (son of Asimuddin) was an owner of 5.54 acres of land in R.S. Khatian Nos. 194 and 195. In course of time the defendants became the owners of the land by way of inheritance and also by way of purchase in their favour beginning from the year of 1946 and 1988 and they have been in possession of the suit land as the owners.

After hearing the parties and considering hugely complicated factual aspects in this case decreed the suit in part for the land measuring 4.47 acres out of total claim of land measuring 5.68 acres from the total land measuring 12.76 acres. Being aggrieved the

present opposite parties as the appellants preferred the Title Appeal No. 139 of 2004 in the court of learned District Judge, Patuakhali which was subsequently heard by the learned Additional District Judge, Patuakhali on transfer who by his judgment and decree dated 19-03-2007 allowed the appeal and also set aside the judgment and decree passed by the learned trial court. This revisional application has been filed challenging the said impugned judgment of the appellate court below and this Rule was issued thereupon.

Mr. Abdul Quayum, the learned Senior Advocate, appearing along with the learned Advocate Mr. Md. Mizanur Rahman, for the present petitioners submits that the court of appeal below failed to consider that a suit for partition can be decided all controversy amongst the parties but erroneously held that without prayer for title this suit was not maintainable and allowed the appeal which has resulted an error in the decision occasioning failure of justice.

The learned Advocate further submits that the court of appeal below failed to consider that the plaintiffs kabala is earlier than the defendants kabala and plaintiffs proved their title and possession over the suit land but the learned appellate court disbelieved their title and erroneously allowed the appeal. The learned Advocate also submits that the learned trial court decreed the suit in the preliminary form but the present opposite parties have preferred the appeal which was allowed by the learned appellate court below without allocating any saham either for the plaintiff-petitioners or for the defendant opposite

parties in this partition suit which cause injustice to both the parties as such the case should be remanded to the learned appellate court below for allocating sahams of the plaintiffs and the defendants after examining the entitlement on the basis of the documentary and oral evidence produced in the court earlier.

The Rule has been opposed by the opposite parties.

Mr. Mohammad Eunos, the learned Advocate, appearing for the opposite parties submits that the present petitioners as the plaintiffs filed the title suit only for partition without claiming any title, therefore, the suit was not maintainable as there were some disputes as to the ownership of the land by the respective parties, as such, the learned appellate court below came to a lawful conclusion to allow the appeal and to set aside the judgment and decree passed by the learned trial court.

The learned Advocate also submits that the trial court erroneously concluded title of the plaintiffs despite the fact no title was claimed, however, the learned appellate court after considering the documents and the oral evidence came to a finding that both the plaintiffs and defendants have their respective land in the suit property. He allowed the appeal on the ground that the no title was claimed, therefore, this case should be remanded to the learned appellate court below for examining the title and respective sahams upon the suit land.

Considering the above submissions, made by the learned Advocates, for the respective parties and also considering the revisional application filed under Section 115(1) of the Code of Civil Procedure along with the annexures therein, in particular, the impugned judgment and decree passed by the appellate court below and also considering the materials available in the lower court record, it appears to me that the present petitioners as the plaintiffs filed the suit for partition of the land mentioned in the plaint claiming that they were owners of the suit land by way of purchases and inheritance. On the other hand, the present opposite parties as the defendants contended that they had entitlement and possession of the suit land by way of different transaction and by way of inheritance.

From the above given fact, it appears to me that both the petitioners and the opposite parties have succeeded their respective land from the C. S. recorded tenant Asimuddin who died leaving behind a widow, Sons and daughters. It also appears to me that there is no dispute as to inheritance of the suit land by both the parties and also by way of purchase or other transaction for a long period of time. Therefore, both the parties are entitled to their respective sahams as per the documents and evidence produced in the trial court. The learned trial court accordingly, allocated a certain measurement of saham by passing a preliminary decree which has been challenged by the present opposite parties as the appellants. The learned appellate court below could found that the plaintiffs and the defendants have

their respective basis of sahams but he allowed the appeal by set aside the judgment and decree passed by the trial court on a very technical ground of maintainability, instead of allocating respective sahams of the parties. The appellate court could have allotted respective sahams on the basis of the documents despite the fact the original suit being Title Suit No. 83 of 2002 was filed only for partition without claiming title upon the suit land. I have carefully examined the judgment and decree passed by the learned appellate court who found that the defendants should get benefit from this case as they could produce sufficient evidence for their respective sahams.

In view of the above discussions and the findings of the learned courts below I am of the view that in a partition suit both the parties can claim and get their respective sahams by proving their entitlement. Therefore, the trial court decreed in part after finding entitlement of the present plaintiff petitioners but did not allot any saham to the present defendant opposite parties, despite the fact he could also find entitlement of the defendant- opposite parties. The learned appellate court also found that both the parties have produced sufficient evidence for their entitlement but he undesirably and unnecessarily simply allowed the appeal on a technical ground which has incurred cost and huge sufferings for both the parties until today which is not acceptable by this court.

I am, therefore, inclined to send this case on remand to the learned appellate court below for re-examining the documents filed in

this case afresh by considering the entitlement / title on the basis of the documents and evidence already produced in this suit as well as in the appeal and to decide to allocate sahams of the respective parties by the court of learned Additional District Judge, Patuakhali for ends of justice. The learned appellate court would be an appropriate court of fact to consider the title of the respective parties afresh and to allocate sahams or portion of land on the basis of documents adduced and produced by the parties on merit.

I am, therefore, inclined to disposed of the Rule.

Accordingly, the Rule is disposed of.

The impugned judgment and decree passed by the learned Additional District Judge, Patuakhali, in Title Appeal No. 139 of 2004 is hereby set aside.

The Court of learned Additional District Judge, Patuakhli is hereby directed to rehear the parties and to allocate sahams of both the present plaintiff-petitioners as well as the defendant opposite parties on the basis of the entitlement pursuant to the documentary and oral evidence and also by allowing the parties to produce additional evidence, if prayed for. Therefore the learned appellate court is to decide the appeal on merit after re-examining the documents and the matter of inheritance for partition of the suit land and the incidental title thereof. The learned Additional District Judge, Patuakhali is also directed to conclude the hearing of the appeal as per the above

direction within 10(ten) months from the date of the receipt of this judgment and order.

The interim order of stay granted at the time of issuance of the Rule upon the operation of the impugned judgment and decree passed by the appellate court below is hereby recalled and vacated.

The Section is directed to communicate this judgment and order to the learned Additional District Judge, Patuakhali at once and is also directed to send down the lower court record immediately.